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|          |                  | <p><b>1987 or under Section 1987.1</b>, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.</p> <p>(Emphasis added.)</p> <p>Based on the foregoing language, making a ruling under Section 1987.1. (i.e., to quash, modify, or limit the subpoena) is a condition precedent to awarding expenses in connection with the motion. Here, the court is not making an order under Section 1987.1.</p> <p>While the mootness of a discovery motion does not eliminate the right to an award of sanctions requested under the Discovery Act (see e.g., Cal. Rules of Court, Rule 3.1348), Code of Civil Procedure section 1987.2 is not under the Discovery Act. The plain language of Section 1987.2 leaves the court without discretion to award sanctions.</p> <p>Furthermore, the court does not find that the motion was made or opposed without substantial justification. The term "substantial justification" means a justification that "is clearly reasonable because it is well grounded in both law and fact." (<i>Doe v. U.S. Swimming, Inc.</i> (2011) 200 Cal.App. 4th 1424, 1434.) The court finds a reasonable basis in law and fact for the arguments advanced by both parties in this case.</p> <p>The motion for sanctions pursuant to Code of Civil Procedure section 1987.2 is <b>DENIED</b>.</p> <p>Moving party is ordered to give notice of this ruling unless notice is waived at the hearing.</p> |
| 01395059 | Hamilton – Trust | <p style="text-align: center;"><b>TENTATIVE RULING</b></p> <p><b>Case:</b> Hamilton – Trust 01395059</p> <p><b>Calendar No.:</b> 5</p> <p style="text-align: right;"><b>Date:</b> 05/20/26</p> <hr/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|          |                  | <p style="text-align: center;"><b>MOTIONS TO COMPEL INITIAL RESPONSES TO DISCOVERY (ROA 60, 61, AND 62)</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

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|  |  | <p>Petitioner Jennifer Pierce moves to compel initial responses to form interrogatories, special interrogatories, and a demand for production of documents from Respondent James J. Pierce.</p> <p>These motions are unopposed despite proof of service.</p> <p>All three motions are <b>GRANTED</b>.</p> <p>The evidence before the court is that Petitioner propounded first sets of Form Interrogatories, Special Interrogatories, and a Demand for Production of Documents on Respondent on 10/1/24. The deadline to respond to discovery was extended to 3/7/25. No responses to the discovery have been served to date.</p> <p>Moving party need not show anything more to obtain an order compelling initial responses to discovery. (Code of Civ. Proc. §§ 2030.290; 2031.300 see also <i>Leach v. Sup.Ct.</i> (1980) 111 Cal.App.3d 902, 905-906</p> <p>Pursuant to Code of Civil Procedure sections 2030.290(c) and 2031.300(c), the court awards reasonable attorney's fees against Respondent James J. Pierce in the amount \$4,005.00 total for all three motions (2.5 hours per motion and 1 hour for appearance x \$450 ph + \$60 per motion in filing costs).</p> <p><u><b>ORDERS</b></u></p> <p>The court <b>ORDERS</b> Respondent James J. Pierce to respond to the Form Interrogatories, Set One; Special Interrogatories, Set One; and Demand for Production of Documents, Set One, without objection within 10 days of notice of this ruling, extended for method of service.</p> <p>The court imposes reasonable sanctions of \$4,005.00 against Respondent James J. Pierce payable within 30 days of notice of this ruling, extend for method of service, or any further date as agreed upon by the parties in writing.</p> <p>Counsel for moving party is ordered to give notice of this ruling.</p> |
|  |  | <p style="text-align: center;"><b>TENTATIVE RULING</b></p> <p><b>Case:</b></p> <p><b>Calendar No.:</b></p> <p style="text-align: right;"><b>Date:</b></p> <hr/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |

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